

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #11	CCRB Case #: 202106409	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/09/2021 1:00 PM	Location of Incident: § 87(2)(b)	Precinct: 66	18 Mo. SOL 4/9/2023	EO SOL 4/9/2023	
Date/Time CV Reported Thu, 10/21/2021 4:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 10/21/2021 4:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Widmarc Pierre	31053	946536	066 PCT
2. SGT Casey Kolokithias	01765	949174	066 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Adeed Fayaz	03652	963511	066 PCT
2. PO Marek Pavelcak	11862	963684	066 PCT
3. PO Allan Lin	21466	967960	066 PCT
4. PO Kimberly Castano	24612	971005	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Widmarc Pierre	Abuse: Police Officer Widmarc Pierre threatened to arrest § 87(2)(b)	§ 87(2)(b)
B. SGT Casey Kolokithias	Abuse: Sergeant Casey Kolokithias forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed the following complaint on October 21, 2021 via the Call Processing System.

On October 9, 2021, at approximately 1:00 p.m., § 87(2)(b) and her husband, § 87(2)(b) had a dispute at § 87(2)(b) in Brooklyn, after finding a camera that he installed in their bedroom. § 87(2)(b) knocked the camera down with a broom and confronted § 87(2)(b) which prompted him to call 911. PO Widmarc Pierre, PO Kimberly Castano, PO Allan Lin, PO Marek Pavelcak, PO Adeed Fayaz and Sergeant Casey Kolokithias, all of the 66th Precinct, responded. When § 87(2)(b) refused to provide § 87(2)(b)'s camera to officers, PO Pierre threaten to arrest her (**Allegation A: Abuse of Authority: § 87(2)(g)**). PO Pierre then advised PO Pavelcak to call for an ambulance, which he did (**Allegation B: Abuse of Authority: § 87(2)(g)**).

Body-worn camera video was requested via NYPD Legal and revealed results for PO Pierre, PO Castano, PO Lin, PO Fayaz, PO Pavelcak and Sergeant Kolokithias (BR 02).

There were no arrests made or summonses issued during the incident.

Findings and Recommendations

Allegation (A): Abuse of Authority: Police Officer Widmarc Pierre threatened to arrest § 87(2)(b)

Between the 28:48 and 31:38 mark of PO Pierre's BWC (BR 15), PO Pierre and Sergeant Kolokithias advise § 87(2)(b) to hand them the camera as it belongs to § 87(2)(b) but she repeatedly refuses to do so. At 31:49, PO Pierre tells § 87(2)(b) that she will be arrested if she does not return the camera to § 87(2)(b). At 32:50, § 87(2)(b) goes into another room with PO Castano to remove the camera from a personal area on her body and gave it to the officers.

§ 87(2)(b) (BR 01) stated that after finding a hidden camera in her bedroom, she confronted § 87(2)(b) about it. § 87(2)(b) began yelling and screaming at her, demanding she return the camera, which she refused. § 87(2)(b) called 911 and reported that § 87(2)(b) stole his camera. When officers and EMTs arrived on scene, PO Pierre asked § 87(2)(b) to hand over the camera. § 87(2)(b) refused and said she would give it back to § 87(2)(b) "by law". PO Pierre told § 87(2)(b) if she did not return the camera, he would arrest her. § 87(2)(b) had hidden the camera in a private area on her body and she could not remove the camera in front of the officers. PO Pierre directed her to PO Castano, who went into another room with § 87(2)(b) to obtain the camera.

PO Pierre (BR 03) told § 87(2)(b) she could be arrested if she did not hand over the camera because that would be considered petit larceny.

New York State Penal Law § 155.25 (BR 16) states that a person is guilty of petit larceny, a class A misdemeanor, when he steals property.

§ 87(2)(g)

Allegation (B): Abuse of Authority: Sergeant Casey Kolokithias forcibly removed § 87(2)(b) to the hospital.

From the 17:57 mark to the 18:39 mark of PO Pierre's BWC (BR 15), § 87(2)(b) is speaking with a Black male EMT. § 87(2)(b) asks the EMT, "Why are you asking me all these questions?". PO Pierre interjects to talk to EMT and says, "He says this is not the first time it happened. This is an ongoing thing". At 18:06, the EMT says to § 87(2)(b) "But is she diagnosed? That's the thing about it". The EMT says, "Let me explain to you something. I cannot

because you or anybody else says she's bipolar and OCD, I can't just grab them like that. Is she medicated?" PO Pierre interjects and says, "He said that she was one time". The EMT says if § 87(2)(b) is calm but just upset, he can't remove her to the hospital. EMTs leave the location. Starting at 39:58, § 87(2)(b) says she would rather go to jail and be arrested than remain with her husband. § 87(2)(b) says she is only afraid of God. § 87(2)(b) was yelling while making these statements, but was not doing anything to alarm or harm officers, herself, or § 87(2)(b). § 87(2)(b) made no threatening or incoherent statements. At 40:51 (BR 15), PO Pierre says to Sergeant Kolokithias, "We'll send her to the hospital... for anxiety". PO Pierre instructs PO Pavelcak to request an ambulance, and at 40:55 PO Pavelcak goes over the radio for an ambulance.

At 52:49 of PO Castano's BWC (BR 14), the same EMTs who arrived earlier entered the room. The white male EMT asks § 87(2)(b) why they were back, but § 87(2)(b) seemed unsure of why. § 87(2)(b) verbally refused to go with EMTs. The EMT advised her that she could go with them willingly or in handcuffs. At 53:53, the Black male EMT says that Sergeant Kolokithias believes she has a problem. PO Pavelcak tells § 87(2)(b) that his concern is that she is yelling and screaming and tells her that her blood pressure is going to increase. § 87(2)(b) says she has no problems with her blood pressure and said she was yelling because she has never had an experience of finding a camera in her house. Eventually, § 87(2)(b) stands up and voluntarily walks out of the apartment. Once outside, § 87(2)(b) tells officers and EMTs that she is fine, but they all insist she must enter the ambulance. § 87(2)(b) was yelling that she does not need to go. § 87(2)(b) repeatedly tries to go back into the apartment, resulting in PO Lin and PO Fayaz handcuffing her and escorting her into the ambulance.

§ 87(2)(b) (BR 01) testified that when EMTs first arrived, she spoke with them and showed them what medication she takes. § 87(2)(b) was speaking with officers by the door telling them that § 87(2)(b) was crazy. PO Pierre then called for an ambulance because she was raising her voice. The same EMTs arrived and removed her to § 87(2)(b).

Sergeant Kolokithias (BR 04-05) described § 87(2)(b) as being "riled up", "agitated" and she seemed like she had "anxiety" because of her voice, demeanor, and repetitive statements. Sergeant Kolokithias spoke with § 87(2)(b) who expressed concern about § 87(2)(b)'s mental health. He informed the officers that § 87(2)(b) is bipolar and has been diagnosed with obsessive compulsive disorder (OCD). Based on § 87(2)(b)'s statement, Sergeant Kolokithias believed § 87(2)(b) may have posed a threat to herself or to § 87(2)(b).

PO Pierre (BR 03) said § 87(2)(b) did not appear to be under the influence of drugs or alcohol. He believed § 87(2)(b) was "depressed" because she was yelling, screaming, crying and emotional. PO Pierre believed this behavior to be an indicator that § 87(2)(b) was a danger to herself. When asked what changed about § 87(2)(b)'s behavior between the first time EMTs left and the second time they arrived, he again stated she was depressed and crying.

PO Pavelcak (BR 06) testified § 87(2)(b) did not appear to be under the influence of any drugs or alcohol. He did not know if she would be a danger to herself or others which is why an ambulance was called. § 87(2)(b) was yelling and making "obscene" statements that did not make sense. § 87(2)(b) also said she did not care about anything which was a cue to PO Pavelcak that she needed medical attention.

As the supervisory officer on scene and because PO Pierre informed Sgt. Kolokithias that he wanted to remove her before instructing PO Pavelcak to request the ambulance, this allegation has been pled only against him.

Event § 87(2)(b) (BR 18) which led the officers to respond to § 87(2)(b)'s residence, was classified by the emergency dispatcher as an incident involving an emotionally disturbed person.

The FDNY's Computer Aided Dispatch (CAD) report (BR 17) indicates § 87(2)(b) called due to a dispute with § 87(2)(b) where she broke his camera. The assignment was initially classified as criminal mischief but was later changed to assisting an emotionally disturbed person.

By not returning signed HIPAA forms in multiple occasions, § 87(2)(b) did not allow the investigation to be able to get access to medical records related to this incident.

Patrol Guide Procedure 221-13 (BR 07) provides members of service with guidelines on safeguarding mentally ill or emotionally disturbed persons who do not voluntarily seek medical assistance. When a uniformed member of the service reasonably believes that a person is mentally ill or emotionally disturbed, the person must be taken into protective custody because they are conducting themselves in a manner likely to result in a serious harm to themselves or others.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 10).
- PO Pierre has been a member of service for 15 and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated. § 87(2)(g)
- Sergeant Kolokithias has been a member of service for 12 years and this is the first CCRB complaint to which he has been a subject (BR 14).

Mediation, Civil, and Criminal Histories

- Mediation was not offered § 87(2)(g).
- On March 3, 2023, a request for Notice of Claim via the New York City Office of the Comptroller was made. Results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator:	<u>Anya Curtis</u>	<u>Inv. Anya Curtis</u>	<u>03/10/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>03/10/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date